

Hyderabad Inams and Cash Grants Abolition Rules, 1960

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State of Maharashtra - Act

Hyderabad Inams and Cash Grants Abolition Rules, 1960

MAHARASHTRA

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Hyderabad Inams and Cash Grants Abolition Rules, 1960

Rule HYDERABAD-INAMS-AND-CASH-GRANTS-ABOLITION-RULES-1960 of 1960

Published on 30 August 1960

Commenced on 30 August 1960

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Hyderabad Inams and Cash Grants Abolition Rules, 1960

Published vide Notification G. N., R. D., HIA. 1060-2/38261-L, dated 30th August, 1960 (M. G., Part 4B, p. 181)

In exercise of the powers conferred by section 35 of the Hyderabad Abolition of Inams and Cash Grants Act, 1954 (Hyderabad VIII of 1955), the Government of Maharashtra hereby makes the following rules namely

1.

Short title.

- These rules may be called the Hyderabad Inams and Cash Grants Abolition Rules, 1960.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(1)

"Act" means the Hyderabad Abolition of Inams and Cash Grants Act, 1954.

(2)

"appointed date" means the date on which the rest of the Act is brought into force under clause (b) of sub-section (3) of section 1;

(3)

"form" means a form appended to these rules;

(4)

"section" means a section of the Act.

3.

Period for payment of occupancy price under sections 5(2) and 6(2).

- The occupancy price payable under sub-section (2) of section 5 or sub-section (2) of section 6 shall be paid within [seven years]

[Substituted by G.N. of 14.12.1965.]

from the appointed date.

4.

Instalment of occupancy price to be paid under section 5(2).

- The first instalment of occupancy price payable by a tenant under the proviso to clause (b) of sub-section (2) of section 5 shall be paid within two years from the appointed date, the second within the next two years and the third during the fifth year from the said date.

5.

Manner of payment of occupancy price under section 5(5).

(1)

The occupancy price deposited with the Collector under sub-section (2) of section 5 shall be accompanied by an application in Form 'A'.

(2)

The Tahsildar shall -

(a)

give to the person depositing the amount of occupancy price, a receipt in respect of the amount deposited, and

(b)

issue a notice in writing to the inamdar to appear before him within 15 days from the date of the service of the notice, to receive the amount so deposited or to state the grounds on which he refuses to accept the amount of occupancy price deposited with the Collector.

(3)

After giving an opportunity to the parties to be heard and after holding a summary enquiry regarding the application -

(a)

if the Tahsildar finds that it is not disputed that the person depositing the amount is his permanent tenant or, as the case may be, his tenant, the Tahsildar shall direct that the amount shall be paid to the Inamdar;

(b)

if the Tahsildar finds that it is disputed that the person depositing the amount is his permanent tenant or, as the case may be, his tenant, the Tahsildar shall direct the parties to have the dispute decided under sub-section (1) of section 2-A.

(4)

If under sub-section (1) of section 2-A, such dispute is decided -

(a)

in favour of person depositing the amount, the Tahsildar shall make an order in accordance with clause (a) of sub-rule (3);

(b)

against the person depositing the amount, the Tahsildar shall direct that the amount deposited by such person shall be returned to him.

6.

Deposits to be held as revenue deposits.

- The amount of occupancy price deposited with the Collector under sub-rule (1) of rule 5 shall be held by the Collector as revenue deposit, and shall, in accordance with the order passed by the Tahsildar under rule 5, be -

(1)

paid to the Inamdar, or

(2)

returned to the person depositing it,

according to the rules applicable for the refund of the amount of revenue deposits.

7.

Instalments in which occupancy price is payable under section 6(2) may be paid.

- The occupancy price payable under sub-section (2) of section 6 shall be paid in five equal annual instalments.

8.

Application for compassionate grant under section 7(1).

- An application for a compassionate payment under clause (d) of the proviso to sub-section (1) of section 7 shall be made in Form 'B' within six months from the appointed date.

9.

Application for compensation under section 9(1).

- An application for compensation under sub-section (1) of section 9 shall be made -

(a)

by the Inamdar in Form 'C'.

(b)

by the holder of cash grant in Form 'D',

within [three year]

[Substituted by G. N. of 9.2.1963.]

from the appointed date.

10.

Application for compensation under section 10(1).

- An application for compensation under sub-section (1) of section 10 shall be made in Form 'E' within one year from the appointed date.

11.

Court-fees.

- Every appeal made to the Maharashtra Revenue Tribunal under section 12 shall bear a court-fee stamp of rupees three.

Form "A"

[See rule 5(1)]

(1)

Full name and address of the applicant.

(2)

Details of inam lands of which the applicant has become the occupant -

(i)

Village :

(ii)

S. No.:

(iii)

Area:

(iv)

Assessment:

(3)

Whether the applicant is a permanent tenant or tenant.

(4)

The total amount of occupancy price to be paid.

(5)

Amount of occupancy price deposited by the applicant earlier -

(i)

Amount deposited :

(ii)

Date of deposit:

(iii)

Treasury or sub-treasury in which deposited.

(6)

Amount of occupancy price now deposited by the applicant -

(i)

Amount deposited :

(ii)

Date of deposit:

(iii)

Treasury or sub-treasury in which deposited.

(7)

Name and address of the Inamdar to whom the amount has to be paid.

I..... declare that what is stated above is true to the best of my information and belief.

Place:

Date :

Signature of the applicant.

To,

The Collector of.....

Form "B"

(See rule 8)

Application for compassionate payment under clause (d) of section 7(1) of the Hyderabad Abolition of Inams and Cash Grants Act, 1954.

1. Name in full of the applicant.

2. Residence and address of the applicant.

3. Occupation.

4. Age as on 1st April, 1960.

5. If the applicant is a female, whether married or unmarried.

6. Sources and estimated amounts of income.

7. If the applicant is the principal earner of his family, his total estimated annual income and the number of persons dependent on him.

8. If the applicant is not the principal earner of his family, then full name and address of the person on whom he is dependent, his estimated annual income and the number of persons including the applicant dependent on him.

9. Details of the cash grant which was held :

(i)

Amount payable every year:

(ii)

Treasury and sub-treasury from which the cash grant had been received.

(iii)

Order or authority under which the cash grant had been sanctioned.

(iv)

Whether the grant was a service or non-service grant, hereditary or life-time.

(v)

Date up to which the grant has been paid.

I solemnly affirm that the above details are correct to the best of my knowledge and information.

Place:

Date:

Signature of the applicant.

To

The Secretary to the Government of Maharashtra,

Revenue Department.

Forwarded through the Tahsildar of.....

Signature of the applicant.

Form "C"

(See rule 9)

Application for claim for compensation under section 9(1) of the Hyderabad Abolition of Inams and Cash Grants Act, 1954, by an Inamdar.

(1)

Full name and address of the applicant and co-sharers, if any.

(2)

Details of inam villages or lands held by the applicant -

(a)

Name of the village :

(b)

Survey Number:

(c)

Area:

(d)

Assessment:

(e)

Judi or sum which was being paid to Government:

(3)

Extent of the applicant's interest in the inam villages or lands.

(4)

Compensation claimed -

(i)

for the extinguishment or modification of rights and interests in properties:

Details of lands and properties

Village

S. No.

Area Assessment

Right or interest extinguished

Amount of compensation claimed

Basis on which compensation is claimed.

(ii)

for the extinguishment or modification of other rights or interests -

Description of the rights or interest and the way in which and

the extent to which they are affected.

Amount of compensation claimed

Total amount of compensation claimed :

I.....do hereby declare that what is stated above is true to the best of my knowledge and belief.

Place:

Date :

Signature of the applicant.

To

The Collector of

Form "D"

(See rule 9)

Application for claim for compensation under section 9(1) of the Hyderabad Abolition of Inams and Cash Grants Act, 1954, by the holder of a cash grant

(1)

Full name and address of the applicant.

(2)

Age of the applicant as on 1st April, 1960.

(3)

Whether married, unmarried or widowed.

(4)

Details of the cash grant abolished under the Act -

(i)

Amount which was received every year :

(ii)

No. and date of the order under which the cash grant was first sanctioned :

(iii)

Treasury or sub-treasury from which the cash grant was being received :

(iv)

Date up to which payment of the cash grant has been received :

(v)

Copy of the sanad or other document evidencing the grant.

(5)

Whether the grant was personal or hereditary, or sanctioned for the maintenance of the applicant or his/her life-time.

(6)

If the grant was granted for the purpose of education, terms and conditions on which the same was sanctioned.

(7)

Whether the applicant has applied to the State Government for a compassionate grant under clause (d) of sub-section (1) of section 7.

I.....do declare that what is stated above is true to the best of my information and belief.

Place :

Date:

Signature of the applicant.

To

The Collector of.....

Form "E"

(See rule 10)

To

The Collector of.....

Full name of the applicant

Village....., Taluka.....

Sir,

I beg to state that I am a resident of village....., Taluka.....
district.....

2. Under the provisions of sectionof the Hyderabad Abolition of Inams and Cash Grants Act, 1954, the following rights of mine in the property/properties specified below are extinguished/modified. I, therefore, claim Rs.as compensation

The specification of properties -

The rights extinguished/modified are :

3. The amount of compensation claimed is arrived at as follows -

4. Extracts from the Record of Rights and other relevant village records in respect of the property/properties are enclosed. I also enclose the following documents evidencing my rights in the property/properties

(Here give a list of documents)

(Names of witnesses, if any, should be stated. It should be stated whether they are to be summoned or whether the applicant will produce them).

Yours faithfully

Signature of the applicant.

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